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IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA

FIRST DISTRICT

CYPRESS DUNES OWNERS ASSOCIATION, INC.,

Petitioner

v.

CYPRESS DUNES, LLC, JOHN WILLIS HOMES OF FLORIDA, LLC, TI CYPRESS DUNES, LLC,

Respondents

and

JIM ROWE, STEPHEN STIPES AND LISA MATTLES

Intervenor Respondents

PETITION FOR WRIT OF CERTIORARI

L.T. CASE NO. 2024-CA- 000573

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PETITION FOR WRIT OF CERTIORARI

CYPRESS DUNES OWNERS ASSOCIATION, INC. (referred to herein as "Petitioner" or "Association") petitions this Court under Florida Rule of Appellate Procedure 9.100(c) for a writ of certiorari to review and quash the post judgment Order Granting Motion to Intervene rendered on October 8, 2025 (the "Order") by the Honorable Jeffrey Lewis of the Circuit Court of the First Judicial Circuit of Florida in and for Walton County, Florida (the "Trial Court") in favor of Intervenors Jim Rowe, Stephen Stipes and Lisa Mattles ("Intervenors"). A copy of the Order appears at pages 676-677 of the Appendix.[1]

The Order departs from the essential requirements of the law regarding post judgment motions to intervene and will cause the Association irreparable harm as a matter of law. This Court should issue a writ of certiorari quashing the Order.

[1] Citations to the Appendix filed together with this Petition are referred to herein as (Appx.___).

BASIS FOR INVOKING JURISDICTION

This Court is authorized to issue writs of certiorari. Art. V, § 4(b)(3), Fla. Const.; see also Fla. R. App. P. 9.030(b)(2). The order to be reviewed was rendered on October 8, 2025. Fla. R. App. P. 9.020(h). This Petition is timely because it was "filed within 30 days of rendition of the order to be reviewed." Fla. R. App. P. 9.100(c)(1).

A writ of certiorari is the proper remedy for seeking review of the Order granting a post judgment Motion to Intervene that departs from the essential requirements of the law. *Am. Mortgage Sols., LLC v. Fresh Brix Properties, LLC,* No. 3D24-2004, 2025 WL 2970145, at *1 (Fla. 3d DCA Oct. 22, 2025); *Fed. Nat'l Mortgage Ass'n v. Gallant*, 211 So. 3d 1055, 1057-58 (Fla. 4th DCA 2017).

STATEMENT OF RELEVANT FACTS

Cypress Dunes is a 207 lot single-family home residential community located in Walton County (the "Community"). It is governed by the Amended and Restated Declaration of Covenants, Conditions, and Restrictions for Cypress Dunes (the "Declaration"). Petitioner, the Association, is the entity that operates the owner's association under the Declaration. The Developer of the Community was Respondent Cypress Dunes LLC (the "Developer").

The majority control of the Community was turned over from the Developer to the homeowner elected Association in 2009.[2] Since then, the homeowners have been represented by their chosen and elected Board of Directors, who operate the Community pursuant to the Declaration and the other Association's Governing Documents. Although turnover happened many years ago, there are still lots upon which homes have not yet been built. In order to build a home, a homeowner must abide by the terms of the Declaration and must seek approval from the Design Review Board in the Community. The Declaration reserved certain rights over the Design Review Board and the Design Guidelines to the Developer, for as long as it owned any portion of the Community and some would continue even after it delegated its reviewing authority was delegated to the Association Design Review Board.

Over the years, there have been efforts by some to terminate such "declarant rights" and form a separate Design Review Board, independent of the Developer. An "Association DRB." Owners seeking to build homes after this occurred in 2023 and 2024 would abide by the Design Guidelines of one

[2] (Appx. 619).

Design Review Board and then were sent cease and desist letters from the "other" Design Review Board.[3] This led to confusion, delays and stagnation.

In 2024, the Developer and related entities (collectively referred to herein as "Respondents") filed a Complaint against the Association seeking to enforce certain provisions in the Declaration. Among other things, specifically to address the Design Review Board issue.

PROCEDURE BELOW

On December 2, 2024, the Respondents filed a Complaint against the Association, seeking declaratory and injunctive relief from the Trial Court regarding the extent of their ability to assert and enforce certain declarant rights contained in the Declaration. After months of settlement negotiations, the Association and the Respondents (collectively referred to herein as the "Parties") were able to settle the dispute and entered into a Settlement Agreement. The settlement resulted in the Respondents abandoning all claims to declarant rights (other than having *minority* representation on the Association's Design Review Board) and Respondents and the Association negotiating the terms of the current Design Review Guidelines.[4]

[3] (Appx. 620)

[4] (Appx. 189-251).

On July 7, 2025, the Parties submitted the Settlement Agreement to the Trial Court for review in a Joint Stipulation for Entry of Final Judgment, in which the Parties requested that a stipulated final judgment be entered approving the terms of the Settlement Agreement.[5] Upon review, on July 15, 2025, the Trial Court agreed and entered the Final Judgment, which acknowledged and incorporated the Parties' Settlement Agreement and retained jurisdiction for enforcement of the same.[6]

On July 17, 2025, three owners in the Community, Jim Rowe, Stephen Stipes and Lisa Mattle (the "Intervenors"), filed a Motion to Intervene and for Rehearing and/or Reconsideration.[7] Two of the Intervenors, Jim Rowe and Stephen Stipes, were the President and Treasurer of the Association Board of Directors until their resignation from the Board on January 10, 2025.[8] As members of the Board of Directors serving when the Complaint was filed, they were fully aware of the pending lawsuit against the Association. Minutes of the Association reflect that, while Intervenor Rowe was serving as President of the Board of Directors, he personally notified the attendees that

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5 (Appx. 123-187).

6 (Appx. 188-251).

7 (Appx. 252-275).

8 (Appx. 256, 550-551, 567-568).

Respondents filed a lawsuit against the Association.[9] Six months later, on June 6, 2025, the Intervenors sent a letter to the Association's counsel threatening to file a derivative action against the Association unless it, among other things, suspended all negotiations with Respondents to settle the matter.[10] During this time, the Association held open meetings of the Board of Directors, which its members (including Intervenors) were able to attend, and which included discussion of the case and the settlement negotiations.[11]

Despite having full knowledge of the case for months, Intervenors waited until after settlement was reached and after entry of the Final Judgment to seek to intervene.[12]

The Motion to Intervene was essentially based on the Intervenors' personal disagreement with the terms of the Settlement Agreement. The Motion to Intervene set forth a number of unverified factual allegations and a number of unsupported legal assertions regarding the Settlement Agreement and the Association's Governing Documents.[13]

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[9] (Appx. 548).

[10] (Appx. 286, 569-570).

[11] (Appx. 287).

[12] (Appx. 252-275).

[13] (Appx. 252-275).

Intervenors did not cite to one case, rule or other legal authority to support its Motion to Intervene.[14]

Based only on unverified, unilateral and conclusory assertions, the Motion to Intervene sought post judgment intervention into a case that had been resolved by the Parties after months of negotiations. Further, without alleging any legal errors in the Final Judgment, the Motion to Intervene also sought rehearing of and setting aside of the Final Judgment and the Settlement Agreement.[15] Finally, the Motion to Intervene sought affirmative relief from the Trial Court: A declaration terminating Respondents' rights and an award of the Intervenors attorney's fees from the Association.

The Association filed a Memorandum of Law in Opposition to the Motion.[16] The Association's Opposition set forth the legal authority of its duly elected Board of Directors to review and settle the matter.[17] It noted the fact that the Intervenors' interests in these issues as homeowners and members were already represented by the Association, which had the legal authority to litigate, negotiate and settle Community issues like these on behalf of the

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[14] (Appx. 252-275).

[15] (Appx. 252-275).

[16] (Appx. 276-282).

[17] (Appx. 276-282).

members. It argued that any interest the Intervenors in these matters had was *derivative* of the Association's interests, not personal direct claims, thus the Intervenors' attempt to personally intervene was improper.[18] The Association's Opposition highlighted the absence of legal authority supporting the Intervenors' Motion to Intervene and their failure to meet the legal requirements for intervention into the case.[19] This failure was compounded by the Intervenors' attempt to intervene *after* the entry of Final Judgment.[20] The Association's Opposition further cited the litany of Florida cases that supported denial of Motions to Intervene filed post judgment.[21]

Respondents also filed an Opposition to Intervenors' Motion. Among other things, Respondents noted the closed nature of the case, the untimely attempt to intervene, the absence of Intervenors' legal support for their attempt to intervene at all, their lack of standing and other legal deficiencies in the Motion to Intervene.[22]

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[18] (Appx. 276-282).

[19] (Appx. 276-282).

[20] (Appx. 276-282).

[21] (Appx. 276-282).

[22] (Appx. 283-575).

The Trial Court held a hearing on the Motion to Intervene on August 28, 2025.[23] At the hearing, Intervenors cited no legal support for their Motion whatsoever. Intervenors further informed the Court that what they really wanted was to "set aside the current final judgment, and then let -- let some discovery happen."[24] In other words, to reopen the case and take it in any number of new directions.

After considering the arguments of the parties, the Trial Court entered the Order at issue in this Petition, granting the Intervenors' Motion to Intervene.[25] The Order gave no explanation or indication of the Trial Court's legal or other reasoning for its ruling.

ARGUMENT

A writ of certiorari should be granted if a petitioner can show: (1) that the order under review departs from the essential requirements of law and (2) that the order will cause irreparable harm that cannot be remedied on plenary appeal. *Belair v. Drew,* 770 So. 2d 1164, 1166 (Fla. 2000). Here, the Association can show both.

[23] (Appx. 576-675).

[24] (Appx. 642).

[25] (Appx. 676-677).

I. The Order Granting Motion to Intervene departed from the essential requirements of the law.

A. The Trial Court departed from the essential requirements of law by allowing this post-judgment intervention, where the express purpose of the intervention was to attack the final judgment.

As the Florida Supreme Court has noted, "the general rule – universally - is that intervention may not be allowed after final judgment." *Dickinson v. Segal*, 219 So.2d 435 (Fla.1969). A trial court departs "from the essential requirements of law by allowing [a] post-judgment intervention, where the purpose of the intervention was to attack the final judgment." *Neon Invs., LLC v. Afina Pallada, Inc.*, 299 So. 3d 45, 47 (Fla. 4th DCA 2020). An intervenor is bound by and must accept the record and pleadings as they exist in the litigation and the intervenor may not raise any new issues. *Riviera Club v. Belle Mead Dev. Corp*., 194 So. 783, 784 (Fla. 1939) ("The appellant, The Riviera Club, was bound by the record, as it was at the time of its petition for intervention, by the pleadings as they were framed at that time, and by the issues and matters involved therein and sought to be adjudicated thereby. It was required to take the suit as it found it, and could not, by its petition to intervene, inject or raise new or independent matters or issues").[26]

[26] *Nat'l Wildlife Fed'n, Inc. v. Glisson*, 531 So.2d 996, 998 (Fla. 1st DCA 1988) (*citing Williams v. Nussbaum*, 419 So.2d 715 (Fla. 1st DCA 1982).

In *Neon*, the court noted that post-judgment intervention generally is not allowed and those cases that have allowed post-judgment intervention are those in which the merits of the underlying judgment are not being challenged. *Neon Investments, LLC*, 299 So. 3d at 47;[27] see also *In re Adoption of a Minor Child,* 593 So. 2d 185, 190 (Fla. 1991) (The general rule is that intervention is impermissible after a final decree has been entered, unless the interests of justice so require, and even then it should be limited to permitting intervention by affected persons so that an appeal can be taken).

The *Neon* trial court granted a motion to intervene filed by a corporation's president in a case where a mortgage on property owned by the corporation was being foreclosed. *Neon*, 299 So. 3d at 45. The case at issue alleged the corporation defaulted under a note and mortgage signed by the vice president of the corporation on behalf of the same. *Id*. The

[27] *Lefkowitz v. Quality Labor Mgmt., LLC*, 159 So. 3d 147, 149 (Fla. 5th DCA 2014) ("The general rule against post-judgment intervention is inapplicable because Lefkowitz is not attacking the merits of Quality's judgment."); *Tech. Chemicals & Products, Inc. v. Porchester Holdings, Inc.*, 748 So. 2d 1090, 1091–92 (Fla. 4th DCA 2000) ("The general rule against post-judgment intervention is inapplicable to these facts because TCPI was not attacking the merits of the judgment, but, rather, was defending its proprietary and pecuniary interest in the Porchester judgment in supplementary proceedings.")

complaint for foreclosure was served on the corporation's registered agent. *Id.* The corporation failed to respond timely and default was entered, followed by a final default judgment of foreclosure. *Id.* The corporation's president argued that she should be allowed to intervene as she was an interested party, president of the corporation, controlling shareholder and chairman of the board. *Id.* She claimed that the foreclosing party, Neon, engaged in fraud with the corporation's vice president in the execution of the note and mortgage. *Id.* The corporation's president further argued she did not learn of the foreclosure until after the final judgment was entered. *Id.* The trial court granted her motion to intervene, and the foreclosing party filed a petition for writ of certiorari. *Id.* at 47.

In its review, the Fourth District, reiterated the long standing general rule against post judgment intervention. It noted how Rule 1.230 of the Florida Rules of Civil Procedure allows intervention in *pending* litigation, not litigation that has been concluded by final judgment. *Id.* It further emphasized that those cases in which post judgment intervention *was* allowed involved intervenors that were not challenging the underlying judgment. *Id.* While specifically acknowledging the facts the corporation president set forth in support of her untimely attempt to intervene, the court noted there were other remedies available to the corporation. *Id.* "If,

however, Neon has committed fraud, or if there was "mistake, inadvertence, surprise, or excusable neglect" in the entry of a default against [the corporation], then [the corporation] can seek relief pursuant to Florida Rule of Civil Procedure 1.540(b). Therefore, the corporation is not without a remedy." *Id*.

The facts in *Neon* are strikingly similar to the facts in this matter and the allegations the Intervenors made in the Trial Court. In this case, two of the Intervenors were on the Association Board of Directors at the time the Complaint below was filed and were well aware of the litigation for months. Yet, they took no action. Like in *Neon,* the Intervenors' Motion to Intervene goes so far as to allege collusion between the Respondents and the Association, accusing the duly elected Board of Directors of the Association of being "pawns" of the Respondents and conducting "backroom bargaining" to reach a "dirty deal."[28]

As is further discussed below, the Intervenors had numerous legal avenues to address any concerns they may have had regarding the Complaint, the litigation or otherwise. Instead, they waited until the negotiation and settlement were complete and a Final Judgment was

[28] (Appx. 258, 581).

entered. The Intervenors' express purpose in intervening was to set aside the Final Judgment and the Settlement Agreement between the Parties and open discovery to begin litigation anew. Intervening in this case is a naked attempt to commandeer the Association, bypassing the elected Board of Directors, and relitigate a closed case to force a different result. This is completely contrary to established law on the limited rights of intervenors.

It is also contrary to the Florida Homeowner's Association Act and the Association's Governing Documents. Homeowners are bound by the authorized decisions of their Board of Directors. If they are unhappy with their board, they can challenge elections, recall the board or file a derivative action if the Association does not act, to name just a few options. *See infra pp. 27-28.* As the *Neon* Court noted, if there was fraud, or if there was "mistake, inadvertence, surprise, or excusable neglect" in the entry of the Final Judgment, then the Association can seek relief pursuant to Florida Rule of Civil Procedure 1.540(b). *Id.*

Here, too, the Intervenors have a number of legal avenues to address their issues that do not require post judgment intervention in this case. Intervenors were not without remedy prior to the entry of the Final Judgment, and they are not without remedy now. Intervention is inappropriate when there is an alternative procedure that is available to protect the interest of the

moving party. *Tootie Disc. Palace, LLC v. PTX Performance Products, Inc.,* 187 So. 3d 960, 961 (Fla. 4th DCA 2016).

The Trial Court's Order Granting the Motion to Intervene departed from the essential requirements of law by allowing post-judgment intervention, where the express purpose of the intervention was to attack the final judgment. It should be quashed.

B. Post Judgment Intervention is generally prohibited and was particularly inappropriate in this case.

"[I]ntervention after judgment ... is extraordinary and disfavored." *PS Capital, LLC v. Palm Springs Town Homes, LLC,* 9 So.3d 643, 645 (Fla. 3d DCA 2009);[29] *Biden v. Lord,* 147 So. 3d 632, 636 (Fla. 1st DCA 2014).

While Florida Rule of Civil Procedure 1.230 provides for intervention in *pending* cases by persons having an interest in the litigation, the general rule is that third persons will not be allowed to intervene as parties to the litigation *after* litigation has resulted in a final judgment. *Lewis v. Turlington,* 499 So. 2d 905, 907–08 (Fla. 1st DCA 1986)[30]. This general rule should prevail in

[29] *citing Rodriguez v. Fernwoods Condo. Ass'n # 2, Inc.*, 957 So.2d 1201, 1202 (Fla. 3d DCA 2007); *Econ. Dev. Corp. of Dade County, Inc. v. Turner,* 485 So.2d 494 (Fla. 3d DCA 1986).

[30] *citing Dickinson v. Segal*, 219 So.2d 435 (Fla.1969) and *Idacon, Inc. v. Hawes,* 432 So.2d 759 (Fla. 1st DCA 1983).

all cases, except in the "rarest of circumstances," under the narrowest exception, as this Court explained in the *Biden* case.[31]

In order to grant intervention after Final Judgment, this Court requires the trial court to find (1) that intervention would "in no way injuriously affect the original litigants" and (2) that intervention would serve the interests of justice. *Biden*, 147 So. 3d at 636. The burden is on the Intervenors to demonstrate the existence of both of these factors. *Id*.[32] The Intervenors failed to demonstrate the existence of *either* of these factors and the Trial Court did not find that they did. Granting the Motion to Intervene without these findings was a departure from the essential requirements of the law.

1. Intervenors did not demonstrate post-judgment intervention would *in no way* injure the original litigants.

As previously noted, Intervenors cited to no law to support post judgment intervention in their Motion to Intervene or in their counsel's arguments at the hearing. Intervenors failed to cite any facts or submit any evidence, either in their Motion to Intervene or via their counsel at the

[31] *Lewis*, 499 So. 2d at 907–08; *Idacon*, 432 So. 2d at 761.

[32] *Biden*, 147 So. 3d at 636 ("The Delaware Attorney General failed to demonstrate that post-judgment intervention would in no way injure the original litigants to the 2004 action". . . "The Delaware Attorney General also failed to show that the interests of justice would be served. . ." by the post judgment intervention).

hearing, to demonstrate that their intervention would "in no way injuriously affect" the Association and the Respondents. Intervenors made no attempt to meet this requirement. In fact, nowhere in the Motion to Intervene, nor at any point in the hearing, did Intervenors even *mention* that post judgment intervention would not injure the original litigants.

The only discussion of this factor at any time in the Trial Court was in the opposition memoranda the Association and Respondents filed to the Motion to Intervene and in their counsel's arguments opposing intervention at the hearing. These memoranda and arguments demonstrated that intervention *would* injure the original litigants.

The Association and Respondents demonstrated that the Association's duly elected Board of Directors were authorized by the Association's Governing Documents to negotiate and settle litigation on behalf of the Association and the homeowners. They argued that stripping the Association and the Community of the settlement that had been negotiated over the course of months by the Parties, which ended the years-long uncertainty plaguing construction of homes in the community *would injure* the Association, the members of the Community and Respondents. (Appx. 627). As the Association's counsel noted below:

> 6 In this case, you have a settlement agreement
> 7 that was entered into by elected officials, leaders

> of the community for specific purposes of bringing peace in the community, for getting structure in the design review process. And if you take away that, you -- this Court will be, one, stripping vested rights that are contained in the settlement agreement; and, two, further injuring the people that rely on the leaders and their community.[33]

The Intervenors failed to demonstrate post judgment intervention would "in no way injuriously affect" the Association and the Respondents. The Association and Respondents demonstrated that post judgment intervention *would* injure them.

The Trial Court did not and could not find post judgment intervention would "in no way injuriously affect" the Association and the Respondents, and the Record would not have supported any such finding. In the absence of such findings, the Trial Court's Order was a departure from the essential requirements of the law and it must be quashed.

2. Intervenors failed to demonstrate that the interests of justice would be served by their post judgment intervention.

Intervenors failed to demonstrate (or again, even *mention*), either through the Motion to Intervene or argument of counsel at the hearing, that the interests of justice would be served by their post judgment intervention.

[33] Appx. 627.

The only arguments or support regarding the interests of justice in the context of post judgment intervention were advanced by the Association and the Respondents, which demonstrated granting the requested intervention would *not* be in the interest of justice.

The Association demonstrated that allowing intervention at this juncture by Intervenors, who sought to reopen the case to engage in protracted litigation, would *not* serve the interest of justice. It would unjustly damage the Respondents and the Association in being forced to continue litigating a settled dispute, and stymie the homeowners who have been waiting for years to have a settled Design Review Board process and be able to move forward in the construction of their homes, among other things. (Appx. 628).

Intervenors were on the Board of Directors at the time the Complaint was filed.[34] They voluntarily resigned from the Board of Directors thereafter[13] (thus, voluntarily abdicating the opportunity to have negotiated the settlement agreement and Final Judgment through their position on the Board of Directors) and waited until the settlement had been reached and a Final Judgment had been entered to move to intervene.

[34] Appx. 551, 553, 604, 606, 617.

As Respondents' counsel noted at the hearing:

> What is important, though, is -- by that inference is an estoppel argument and unclean hands on behalf of **these intervenors**. You've got **two of** them who are sitting here, Mr. Stipes and Mr. Rowe, who are on the Board of Directors. They weren't kicked off. They could have sat on the Board all this year and participated with the Board in all these settlement discussions. They chose to resign because they didn't get their way in their election. They didn't -- they didn't think could control the Board.
>
> Ms. Mattles, she shows up at these Board – there's a couple of the Board meetings where the settlement discussions were discussed. It's in your notebook. And she showed up. She didn't voice any objection. You don't have any correspondence, any attendance by these intervenors at any of these Board meetings objecting to what the Board is doing until Mr. Smith [Intervenor's Counsel] gets involved.
>
> They have known about it all these months. They've chose to do nothing. And now they want injure, injure their own association and their community and my clients by asking this Court to -- "Let's undo everything that the -- the settlement agreement. And then we'll go -- we're going to go through discovery, and we're going to go litigate for a while, and we're going to see what happens." That's what they want you to do. And that is not what the law allows.[35]

As the Association's counsel aptly noted at the hearing:

> This comes down to **several members of the Association trying to seek a court order solution**

[35] Appx. 611-612. (emphasis added)

> **to a political grievance**. The Board of Directors at this association had been elected by the owners since 2009. Anybody can run. Anybody can get elected. They've had these elections every year.[36]

Intervenors were on the Board of Directors and could have stayed to negotiate or defend the litigation but voluntarily chose not to do so. The rest of the elected Board of Directors of the Association carried on as authorized in the Governing Documents, to defend and resolve the litigation.

Specifically, Section 7.5 of the Declaration of Covenants of the Community states in pertinent part:

> Except as otherwise specifically provided in the Governing Documents or by law, **the Board may exercise all of the Association's rights and powers without a vote of the membership.**
>
> **The Board may institute, defend, settle,** or intervene on the Association's behalf in mediation, binding or non-binding arbitration, **litigation**, or administrative proceedings **in matters pertaining to the Common Maintenance Areas, enforcement of the Governing Documents, or any other civil claim or action.** However, the Board has no legal duty to institute litigation on behalf of or in the name of the Association or the Members.
>
> In exercising the Association's rights and powers, making decisions on the Association's behalf, including, without limitation, deciding whether to file a lawsuit under any circumstances, and conducting the Association's affairs, Board members and the Association's officers are subject to, and their

[36] Appx. 619.

> actions shall be judged in accordance with, the standards set forth in the By-Laws.[37]

In *Harris v. Bristol Lakes Homeowners Ass'n, Inc.,* 126 So.3d 1075, 1076 (Fla. 4d DCA 2012), the court held that there was no showing that the interests of justice required intervention in a case where a homeowner sought to intervene in a case between her Homeowner's Association and another Homeowner's Association. *Id.* She filed her motion to intervene a week prior to entry of an order dismissing the case based upon a settlement. *Id.* The court found "the general rule-universally-is that intervention may not be allowed after final judgment,' save "in the interests of justice". . . and there is no showing that the interests of justice required this intervention." *Id.*

Similarly here, the Association Board of Directors were properly authorized to and did negotiate and enter into a Settlement Agreement on behalf of the Community and Intervenors have not shown the interests of justice required their intervention.

If Intervenors were unhappy about how the duly elected Board of Directors was handling the matter, they could have remained on the Board of Directors. They could have challenged the election as authorized by

[37] (Appx. 277, 622) (emphasis added).

Florida law, as well. Fla. Stat. §§ 720.306(9)(b)-(c) (2025). Alternatively, they could have organized the Community votes to seek a recall the Board of Directors, as authorized by Florida law. Fla. Stat. §720.303(10) (2025). There were numerous potential avenues to address their concerns. They did none of these. Instead, they sought to undermine the authority of the Board of Directors and the will of the Community that elected the Board of Directors via Court intervention after the conclusion of the matter. Moreover, they did so as just 3 homeowners in a 207 lot Community. The Trial Court's Order allows Intervenors to circumvent the statutory election and recall process of the Community that requires *other* homeowners' involvement and support and it undermines the authority of the existing, duly elected Board of Directors.

Apart from the legal avenues in the Florida Homeowner's Association Act, derivative suits are available to homeowners in a homeowner's association. *Leppert v. Lakebreeze Homeowners Ass'n, Inc.,* 500 So.2d 250, 252 (Fla. 1st DCA 1986); *Iezzi Family Ltd. P'ship v. Edgewater Beach Owners Ass'n, Inc.,* 254 So. 3d 584, 586 (Fla. 1st DCA 2018). Even if Intervenors' baseless attacks on the independence of the Association's Board of Directors were true, which the Association disputes, such matters would be more properly addressed via a derivative suit. Shareholder

derivative suits were originally created by common law as a means to enable shareholders to police "faithless directors and managers." *Timko v. Triarsi*, 898 So. 2d 89, 90 (Fla. 5th DCA 2005) *citing Larsen v. Island Developers, Ltd.,* 769 So.2d 1071, 1072 (Fla. 3d DCA 2000).

In short, there existed any number of legal avenues to achieve Intervenors' stated interests. The Trial Court Order allowing them to intervene in this lawsuit post judgment, to redo the litigation instead allows the Interveners to bypass all of these. Three homeowners in a 207 lot Community intervening in a closed case to reopen and relitigate it to have it reflect their personal will instead of the Association's is not something the law allows and it is not in the interest of justice.

Intervenors did not and could not demonstrate their post judgment intervention was in the best interest of justice. The Trial Court did not and could not make any such findings, and the Record would not have supported any such finding. In the absence of such findings, the Trial Court's Order was a departure from the essential requirements of the law, and it must be quashed. Moreover, the Trial Court's Order resulted in a miscarriage of justice because it allowed Intervenors to bypass the proper processes

afforded them to have addressed their alleged concerns timely and properly.[38]

3. The Trial Court departed from the essential requirements of the law by nevertheless granting the Motion to Intervene

Intervenors failed to set forth facts or law to support the two factors universally required in Florida to overcome the prohibition on post judgment intervention. The Association and Respondents demonstrated that Intervenors did *not* meet these requirements. The Trial Court was unable to and did not make such findings and there is nothing in the Record to support any such findings. In the absence of such findings and support therefore from the Intervenors, the Trial Court departed from the essential requirements of the law by granting the Motion to Intervene and its Order should be quashed.

C. Intervention was inappropriate in this case, even if Intervenors had sought to intervene prior to entry of the Final Judgment

Beyond the Intervenors' extraordinary post-judgment request to intervene into this matter for the improper purpose of setting aside the Final

[38] *See generally*, *LIV I LLC v. Regions Bank*, 310 So. 3d 1136, 1139 (Fla. 2d DCA 2021) (This violation of a clearly established principle of law resulted in a miscarriage of justice because it allowed Regions to bypass proper collection procedures in proceedings supplementary and the corresponding due process rights for the debtor.).

Judgment and reopen the litigation, their Motion to Intervene fails to support even basic requirements for intervention.

Florida Rule of Civil Procedure 1.230 states:

> Interventions. Anyone claiming an interest **in pending litigation** may at any time be permitted to assert a right by intervention, but **the intervention shall be in subordination to, and in recognition of, the propriety of the main proceeding**, unless otherwise ordered by the court in its discretion.

It is well-settled that a party seeking entitlement to intervene must establish an interest in the litigation "of such a direct and immediate character that the intervenor will either gain or lose by the direct legal operation and effect of the judgment." *Providence Wash. Ins. Co. a Southern Guarantee Ins. Co.*, 667 So.2d 323, 324 (Fla. 1st DCA 1995).[39] Interests that are merely indirect, remote, or contingent are not sufficient to support intervention. *Florida Dept of Health & Rehabilitative Servs. v Doe,* 659 So.2d 697, 698 (Fla. 1st DCA 1995) (*citing Grimes v Walton County*, 591 So.2d 1091 (Fla. 1st DCA 1992)). In *Grimes*, the court found that homeowners' interests were too indirect and contingent to support intervention, as any harm depended on

[39] *citing Union Cent. Life Ins. Co. v. Carlisle,* 593 So. 2d 505, 507 (Fla. 1992) (*quoting Morgareidge v. Howey*, 75 Fla. 234, 78 So. 14, 15 (1918)) (emphasis added).

future actions by a zoning board rather than the immediate outcome of the litigation. *Grimes*, 591 So.2d at 1094-95.

In this case, the Intervenors' asserted interests are neither direct nor immediate, as required for intervention.

First, their concerns are all speculative and dependent on future events. As in *Grimes*, where the alleged interests were dependent on potential future actions by a zoning board, instead of the immediate outcome of the litigation at issue, the Intervenors' interests here are also contingent and hypothetical, and therefore insufficient to support intervention.

Second, and importantly, Intervenors allegations in the Motion to Intervene make it plain that their claimed interests are of a *derivative nature* on behalf of all owners and members.[40] The Motion to Intervene states in

[40] Their Motion to Intervene states, for example:

"The Agreement also impermissibly causes the Association (and, therefore, the owners collectively) to potentially incur liability due to the Willis-controlled DRB's potential decisions affecting development at Cypress Dunes." (Appx. 256).

"The Agreement unfairly gives Plaintiff TI Cypress Dunes, LLC, special treatment and benefits from the DRB and Association, in a manner which constitutes a further restraint of trade and breach of the Association's fiduciary duty owed to the owner/members." (Appx. 257).

"The Agreement impermissibly attempts to change guidelines which would allow taller and larger buildings, all to the detriment of preexisting homes which were built by their owners with the promise that the guidelines then

part that "Interveners [sic] are seeking what would be considered derivative relief against the Association because **these issues being addressed do affect all of the owners/members**." (Appx. 258) (emphasis added). They attach to their Motion to Intervene their prejudgment demand letter to the Association pursuant to "Fla. Stat. Section 617.07401 Members' Derivative Action." (Appx. 272-273). The injury Intervenors alleged in their Motion to Intervene was not distinct from other homeowners and any harm was primarily against the corporation.

In *Leppert,* the plaintiff brought suit against her homeowners association alleging corporate mismanagement, among other things. 500 So. 2d at 252. She argued that her action was not derivative because she brought it individually and sought redress for injuries she sustained directly. *Iezzi*, 254 So. 3d at 586 *citing Leppert,* 500 So. 3d at 252. "This Court reviewed the substance of the allegations made, noting that "the character of the suit is to be determined from the gravamen of the complaint." *Id*. This Court held that the claim was derivative, finding that the injury alleged was not distinct from other homeowners and any harm was primarily against the corporation. *Iezzi*, 254 So. 3d at 587.

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established would not be changed to their detriment in the future." (Appx. 257).

Intervenors' counsel expressly concedes as much at the hearing as well:

> On June 6th, my law firm sent two letters to Mr. Roberts: . . . . . and then also a letter saying **this is a derivative action,** potentially, **because these intervenors, if, in fact, they're right and what y'all did is wrong, it does affect everyone. It would be a derivative action.**[41]

Intervenors acknowledge, then, that they are not asserting their own direct, personal interests, but rather the interests of others. Interests that are merely indirect, remote, or contingent are not sufficient to support intervention. *Florida Dept of Health & Rehabilitative Servs*., 659 So.2d at 698.

The Trial Court's Order Granting the Motion to Intervene would have been improper, even if not for the extraordinary and fatal post judgment aspect in this case.

II. The Order Granting Motion to Intervene will cause irreparable harm.

A post-judgment intervention like the one in this case is sufficient to show material harm not remediable on appeal. *Neon Investments, LLC*, 299

[41] (Appx. 596).

So. 3d at 47. ("We conclude that Neon suffers from irreparable harm, because the intervention seeks to vacate the final judgment and prevent any sale of the property while addressing other claims between the parties.").

The Order causes irreparable harm to the Association because it allows the Intervenors, who own just 3 out of 207 lots in the Community, to disregard the validity and authority of the Board of Directors that was duly elected by the homeowners of the Community.

As the Florida Supreme Court stated in *State ex rel. Siegendorf v. Stone*, 266 So. 2d 345, 347 (Fla. 1972), "[t]he basic principle of our constitutional and democratic system is set forth as the very first words of our Florida Constitution: 'Declaration of Rights 'Section 1. Political power.—All political power is inherent in the people.'" *Id.* (emphasis added). In *Stone*, the court reviewed a petition seeking to remove a candidate's name from the ballot. *Id*. The court found that "to remove [candidate] from the people's consideration, and his name from the election ballot, would be irremediable." *Id*. at 346. It would remove from the electorate the opportunity to select the candidate of its choice. *Id.*

The Order allowing the intervention essentially does the same thing because it allows 3 unelected homeowners to usurp control of the

Association in the litigation, rather than those members of the Board of Directors that had been duly elected by the Community.

As Intervenors' counsel conceded to the Trial Court at the hearing, they were just unhappy with the election results and could not get the electorate to vote their way.

> MR. SMITH: And, Your Honor, to be clear, **you're right if you think the intervenors aren't happy with the way the election went in December of 2024.** And, you know, they're not alleging Russian interference in the election or anything like that. But the fact is, **it didn't go their way**. And they do say there was some, you know, mail outs or whatever, some false information done. But it's too late. We all agree on that. It's too late to challenge the election. It's over.[42]

The Order calls into question the authority of the Board of Directors and the management of the Association, without any of the process that is in place in the Florida Homeowner's Association Act for such issues. It further opens the door for any other homeowner who is unhappy with the Association's management of litigation in the future to bypass and circumvent all proper processes in the Florida Homeowner's Association Act

[42] (Appx. 640).

and Association's Governing Documents. Such damage to the Association is irreparable.

The Order allowing intervention causes irreparable harm to the Association in that it usurps the clear authority of the Board of Directors in the Association's Governing Documents to defend and settle all litigation. The Intervention aims to undo a Final Judgment approving a Settlement Agreement that the Association has reviewed and found to be in the best interest of the Association on terms that may not be available in the future.

As previously noted, if the Association did not take actions on behalf of owners as the Intervenors thought proper, Intervenors could have filed a derivative action. They did not do that. They could have at any time obtained the owner votes to recall the Board of Directors pursuant to the Florida Homeowner's Association Act. They did not do that. They could have challenged the election pursuant to the Florida Homeowner's Association Act, but they did not do that.

Instead of taking any of the legally sanctioned actions, Intervenors sought to intervene, post judgment, and

. . . . . **require owner approval of this**
settlement, and thereby **set aside the current final**
judgment, and then let **-- let some discovery happen**
so we can prove to the Court that what we say is

right.[43]

The Order will cause irreparable harm to the Association and the Community by subjecting it to improper, unnecessary and protracted litigation at the unelected and unauthorized hands of the owners of just 3 out of 207 lots in the Community; litigation of issues that the duly elected Board of Directors already reviewed and resolved. All throughout this potentially protracted litigation, and potentially thereafter, the homeowners in the Community will remain unsure about the authority of the duly elected Board of Directors, causing irreparable harm.

The Order will also cause irreparable harm to the homeowners in the Community through continued uncertainty regarding which Design Review Board is the proper one, and inability to build homes in the Community without fear that the other Design Review Board might sue for enforcement of its perceived rights.

The Order will cause irreparable harm to the Association and the Community because the normal functions of the Association could not be carried pending finality and certainty regarding the Design Review Board, placing property values at risk. See generally, Neon, 299 So. 3d at 47.

[43] (Appx. 642).

This Court should grant the Writ of Certiorari and quash the Order.

CONCLUSION

The law is clear that post judgment is improper, except in the rarest of circumstances where the trial court finds (1) that intervention would not in any way injuriously affect the original litigants and (2) that intervention would serve the interests of justice. Even in those cases, a party seeking entitlement to intervene must establish an interest in the litigation "of such a direct and immediate character that the intervenor will either gain or lose by the direct legal operation and effect of the judgment." In this case, not only did Intervenors fail to establish, or even allege, the basic requirements of intervention and the narrow exceptions to post judgment interventions, there is simply no place in the Record where such allegations could find purchase. The Trial Court did not and could not make the required findings to support this intervention. Accordingly, its Order nevertheless granting intervention violates various clearly established principles of law, resulting in a miscarriage of justice.[44] This error is exacerbated by the fact that the express purpose of the improper intervention in this case was to set aside

[44] *Allstate Ins. Co. v. Kaklamanos,* 843 So. 2d 885, 889 (Fla. 2003).

the Final Judgment, which on its own constitutes a departure from the essential requirements of the law.

Petitioner, CYPRESS DUNES OWNERS ASSOCIATION, INC. respectfully requests entry of a writ of certiorari, quashing the Trial Court's Order Granting Motion to Intervene, and such other relief this Court deems just and proper.

CERTIFICATE OF COMPLIANCE WITH FONT REQUIREMENTS

The undersigned hereby certifies that the foregoing Petition for Writ of Certiorari complies with the font and word count limit requirements of Rules 9.045 and 9.100(g) of the Florida Rules of Appellate Procedure, and it was prepared utilizing double-spaced Arial 14-point font and contains less than 13,000 words.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on **November 7, 2025** a true and correct copy of the foregoing was filed with the First District Court of Appeal via the Florida Court E-Filing Portal and served via the Clerk's E-Service System upon:

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